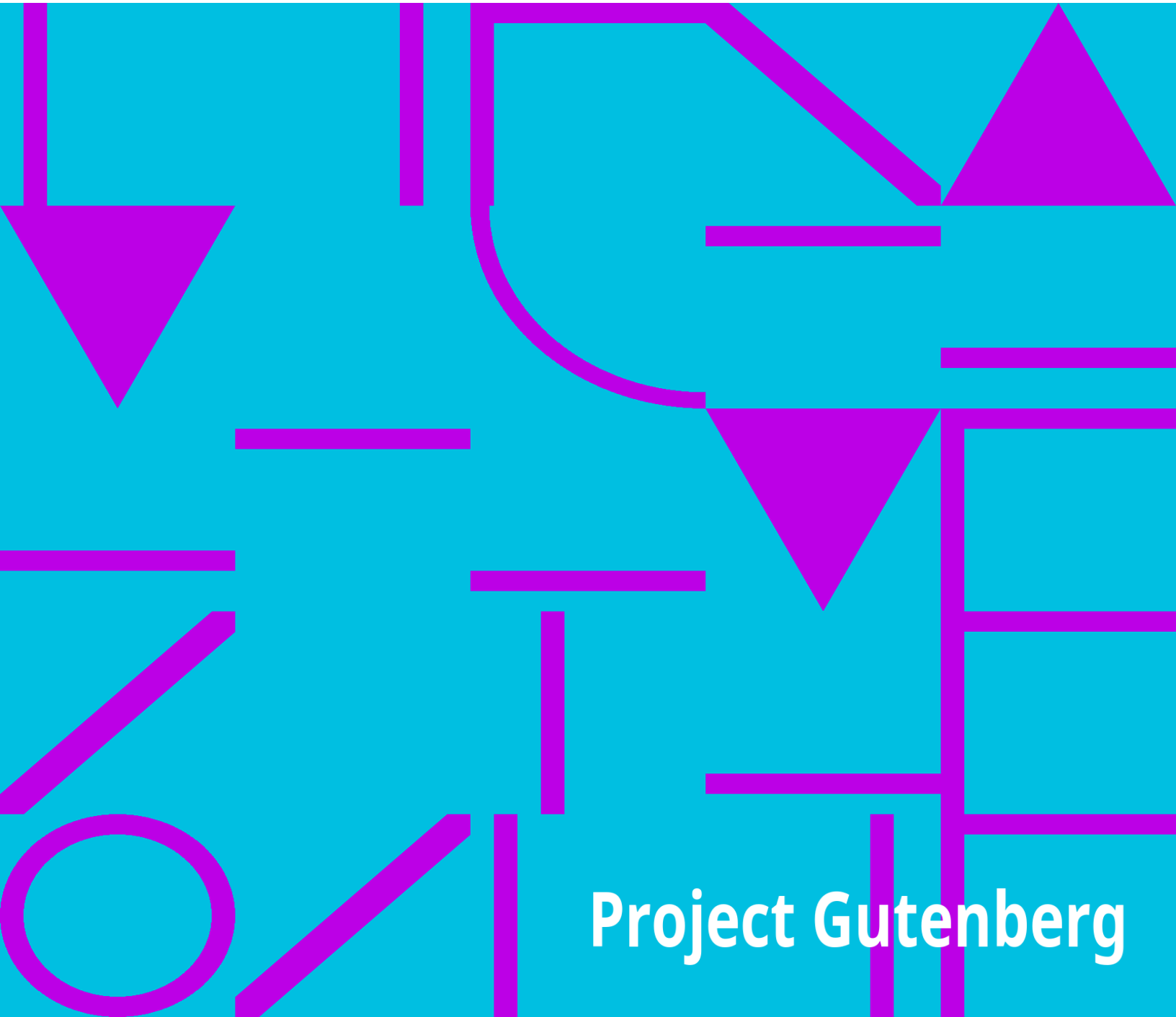


Thomas Jefferson Brown

James Oliver Curwood



Project Gutenberg

Thomas Jefferson Brown

James Oliver Curwood



Project Gutenberg

The Project Gutenberg eBook of Thomas Jefferson Brown

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Thomas Jefferson Brown

Author: James Oliver Curwood

Release date: October 24, 2007 [eBook #23181]

Most recently updated: January 26, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/23181

Credits: Produced by David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THOMAS
JEFFERSON BROWN ***

THOMAS JEFFERSON BROWN

BY James Oliver Curwood

Copyright, The Frank A. Munsey Co

Contents

I
II
II
I
I
V

I

There are not many who will remember him as Thomas Jefferson Brown. For ten years he had been mildly ashamed of himself, and out of respect for people who were dead, and for a dozen or so who were living, he had the good taste to drop his last name. The fact that it was only Brown didn't matter.

"Tack Thomas Jefferson to Brown," he said, "and you've got a name that sticks!"

It had an aristocratic sound; and Thomas Jefferson, with the Brown cut off, was still aristocratic, when you came to count the red corpuscles in him. In some sort of way he was related to two dead Presidents, three dead army officers, a living college professor, and a few common people. He was legitimately born to the purple, but fate had sent him off on a curious ricochet in a game all of its own, and changed him from Thomas Jefferson Brown into just plain Thomas Jefferson without the Brown.

He was one of those specimens who, when you meet them, somehow make you feel there are a few lost kings of the earth, as well as lost lambs. He was what we called a "first-sighter"—that is, you liked him the instant you looked at him. You knew without further acquaintance that he was a man whom you could trust with your money, your friendship—anything you had. He was big, with a wholesome brown face, blond hair, and gray eyes that seemed always to be laughing and twinkling, even when he was hungry. He carried about with him a load of cheerfulness so big that it was constantly spilling over on other people.

There was a time when Thomas Jefferson Brown had little white cards with his name on them. That was when he went to college, and his lungs weren't so good. It was then that some big doctor told him that if he wanted to live to have grandchildren, the best thing for him to do was to "tramp it" for a time—live out of doors, sleep out of doors, do nothing but breathe fresh air and walk. That doctor was Fate, playing his game behind a pair of spectacles and a bumpy forehead. He saved Thomas Jefferson Brown, all right; but he turned him into plain Thomas Jefferson.

For Thomas Jefferson Brown never got over taking his medicine. He kept on tramping. He got big and broad and happy. Somewhere, perhaps in a barn, he caught a microbe that made him dislike ordinary work. He would set to and help a farmer saw wood all day, just for company and grub; but you couldn't hire him to go into an office, or settle down to anything steady, for twenty-five dollars a day. He had a scientific name for the thing that was in him—the *wanderlust* bug, I think he called it; and he said it was better than the Chinese lady-bugs that the government imports to save California fruit.

The nearest Thomas Jefferson ever came to going back to Thomas Jefferson Brown was when he took a job at braking on the Southern Pacific. That held him for three, days less than two weeks.

“The *wanderlust* bug wouldn't stand for it,” he explained.

Right after that he struck a farmer's house where the farmer was sick, almost dying, with three little kids and a frail little woman trying to keep things up. He worked like ten men for more than a month on that farm, and when he went away he wouldn't take a cent. That's the sort of ne'er-do-well Thomas Jefferson was.

He wouldn't beg. He'd go three days without grub, and laugh all the time. It was mostly in the country and in small villages that he made his living. He could play seven different kinds of instruments without any instruments at all. Did it all with his mouth. And the kids—they went wild over him. In return for his entertainment, Thomas Jefferson wasn't ashamed to take whatever came to him in the way of odd nickels and dimes.

Once the manager of a vaudeville house heard him on a street corner, and offered him a job at fifty a week if he'd sign a contract for a dozen weeks.

“Good Lord,” said Thomas Jefferson, “I wouldn't know what to do with six hundred dollars!”

The next week he was cooking in a lumber-camp for his board. That's Thomas Jefferson—or, rather, that's what he was.

And now we're coming to the girl who killed the bug in Thomas Jefferson—and rescued the king. She was born swell. She has blue eyes—the sort that can light up a dark day, and can make your head turn dizzy when they smile at you. And she's got the right sort of hair to go with 'em—red and gold and brown all mixed up, until you can't tell which is which;

the sort that makes you wonder if some big artist hasn't been painting a picture for you, when you see it out in the sunshine.

She comes of a titled family, but she'd want to die to-morrow if Thomas Jefferson Brown didn't worship her from the tips of her little toes to the top of her pretty head. She thinks he's a king. And he is—one of those great, big, healthy kings that nature sometimes grows when it has half a chance.

II

It's curious how the whole thing happened. Thomas Jefferson wandered up to Portland at the time we were fitting out a ship for a whaling cruise. We saw him imitating a banjo for a lot of kids down on the wharf, and the minute our eyes lit on him—Tucker's and mine—we liked him. It isn't necessary to go into the details of what happened after that. Just a week later, when Thomas Jefferson and I were shaking hands for the last time, a queer sort of look came into his eyes, and he said:

“Bobby, you're the first man I ever knew that makes me feel like crying when you leave me.”

He said it just like one of the kids he'd tickled half to death on the wharf. There was a little jerking in his throat, and there came into his face a look so gentle that it made me think of a girl.

“Why don't you come along on this cruise with me?” I said.

Thomas Jefferson gave a sudden start, and a queer expression came into his eyes, as if he saw something out on the sea that had startled him. Then he laughed. You could hear that laugh of Thomas Jefferson's three blocks away, and sunshine in winter couldn't bring more cheer than the sound of it. He looked at me for a moment, and then said:

“Bobby, I'll go!”

It wasn't forty-eight hours before Thomas Jefferson had a first mortgage on every soul aboard the “Sleeping Sealer,” from the cap'n to the oiler down in the engine-room. He was able, all right, but you couldn't have made an able seaman out of him in a hundred years. For all that, he did the work of three men. The first thing you heard when you woke up in the morning was his whistle, and the last thing you heard at night was his laugh or his song. He did everything, from cooking to telling us why Germany couldn't lick England, and how the United States could clean up the map of the earth if Congress would spend less money on job-making bureaus and a little more on war-ships.

Then we discovered what was in the old alligator-skin valise he carried. It was books. Half the time he didn't have to read to us, but just talked off

the stuff he'd learned by heart. We got to know a lot before the trip was half begun, just by associating with Thomas Jefferson Brown—or Thomas Jefferson, as he was then.

We spent three months up about the Spicer Islands, and then came down toward Southampton Land. Thomas Jefferson was the happiest man aboard until we caught sight of a coast, and then the change began. After that he'd get restless whenever land hove in sight.

Six weeks later we came down into Roes Welcome Sound, planning to get out through Hudson Strait before winter set in. The fact that we were almost homeward bound didn't seem to affect Thomas Jefferson. I saw the beginning of the end when he said to me one day:

"Bobby, I've never seen this northern country. It's a big, glorious country, and I'd like to go ashore."

There wasn't any use arguing with him. The cap'n tried it, we all tried it, and at last Thomas Jefferson prepared to take his leave of us at Point Fullerton, just eight hundred miles north of civilization, where there's an Eskimo village and a police station of the Royal Northwest Mounted. He came to me the day before we were going to take him ashore, and said:

"Bobby, why don't you come along? Let's chum it, old man, and see what happens."

When he went ashore, the next day, I went with him, and we each took three months' supply of grub and our pay. From that hour there began the big change—the change which turned Thomas Jefferson back into Thomas Jefferson Brown, and which it took a girl to finish.

It came first in his eyes, and then in his laugh. After that he seemed to grow an inch or two taller, and he lost that careless, shiftless way which comes of what he called the *wanderlust* bug. There wasn't so much laughter in his eyes, but something better had taken its place—a deeper, grayer, more thoughtful look, and he didn't play those queer things with his mouth any more.

The police at Point Fullerton hardly had a glimpse of him as the big, sunny, loose-jointed giant, Thomas Jefferson. He had become a bronze-bearded god, with the strength of five men in his splendid shoulders, and a port to his head that made you think of a piece of sculpture.

“You can’t be anything but a *man* up here, Bobby,” he said one day, and I knew what he meant. “It’s not the air, it’s not the cold, and it’s not the fight you make to keep life in your body,” he added, “but it’s God! That’s what it is, Bobby. There’s not a sound or a sight up here, outside of that little cabin, that’s human. It’s all God—there’s nothing else—and it makes you think!”

III

It was spring when we came down to Fort Churchill, and it was summer when we struck York Factory. It was the middle of one of those summer days when strawberries ripen even up there, that the last prop fell out from under Thomas Jefferson, and he became Thomas Jefferson Brown. He met Lady Isobel. The title did not really belong to her, for she was only the cousin of Lord Meton; but Thomas Jefferson Brown called her that from the first.

It was down close to the boats, where their launch lay, and the wind had frolicked with Lady Isobel's hair until it rippled about her face and shoulders like a net of spun gold. She was bareheaded, and he was bareheaded, and they stared for a moment, her blue eyes flashing into his gray ones; and then there came into her face a color like rose, and he bowed, as one of the old-time Presidents might have bowed to a hair-powdered beauty in the days when the Capitol was young.

That was the beginning, and to his honor be it said that Thomas Jefferson Brown never revealed that he was a gentleman born, though his heart was stricken with love at that first sight of Lady Isobel's lovely face. Lord Meton wanted a man—one who could handle a canoe and shoulder two hundred pounds of duff; and "Tom" became the man, working like a slave for a month; but always with the pride and bearing of a king.

It wasn't difficult to see what was happening. Lord Meton saw, and understood; but he knew that the proud blood in Lady Isobel was an invulnerable armor that would protect her from indiscretion. And as for Thomas Jefferson Brown—

"Bobby," he said, standing up straight and tall, "if she can only love a gentleman, and not a man, what's the use of playing cards?"

One day, when he had to carry Lady Isobel ashore from a big York boat, something inside him got the best of his arms, and he held her tight—so tight that her eyes came down to his with a frightened look, and he heard a breath come from her that was almost a sob. They gazed at each other for a

moment, and it was then that Thomas Jefferson Brown told her that he loved her—not in words, but in a way that she understood.

When he set her down on shore she was as white as death. From that day she treated him a little coolly—up to the last moment, out on the bay.

It was a bright, sunshiny day when the three—Lord Meton, Lady Isobel, and Thomas Jefferson Brown—set off in a big birchbark canoe, bound for Harrison's Island, a dozen miles out from the mainland. But you can't tell much about sunshine and calm on Hudson Bay. They're like a jealous woman's smile, masking something hidden. Four miles out, the wind came up; midway between the island and the mainland, it was a small gale. Even at that, Thomas Jefferson Brown would have made it all right if the beat of the sea hadn't broken a rotten thread under the bow, letting the birch seam part with a suddenness that sent a little spurt of water up into Lady Isobel's face.

What? No, this isn't going to have the regulation hero-act end, in which Thomas Jefferson Brown saves the life of the lady he loves. It's something different—something that Thomas Jefferson Brown never guessed at when the water spurted in, and Lady Isobel turned to him with a little scream, her beautiful blue eyes wide and filled with horror.

"Don't be afraid," he said. "Here, take this jacket and hold it down tight over the seam. We'll reach the island, all right."

Lady Isobel held the jacket over the hole, and Thomas Jefferson Brown put a strength into his paddle that threatened to crack off the handle. After a minute or two, he saw a little trickle of water, beginning to ooze in about the edges of the jacket. He leaned back for an instant, and signaled Lord Meton to bend over toward him.

"Take off your clothes," he said, so low that Lady Isobel couldn't hear. "Can you swim?"

"Not a stroke," said Lord Meton, and his face went as white as chalk; but it was no whiter than Thomas Jefferson Brown's.

When a birchbark seam begins to part there's no power on earth that will hold it when the canoe is heavily loaded. A few minutes later, the water was gushing in by the quart about Lady Isobel's feet. She fought hard to hold it back. When at last she saw that it was hopeless, she turned again, to see Lord Meton in his underwear, and Thomas Jefferson Brown stripped of

everything but his shirt and his buckskin trousers, which don't water-sog. He laughed straight into her face, as if it was all an amusing joke; and then, suddenly, he began playing that banjo thing with his mouth.

It was all so strange, with the beat of the sea, the wail of the wind, and Thomas Jefferson Brown sitting there as if nothing were happening, that Lady Isobel just stared in astonishment, while the water gushed in about her. At last he put down his paddle, and stretched out both hands; and it seemed the most natural thing in the world that her two hands should come out to meet his.

"Listen," he said, and his eyes were telling her again what they told her on the day when he brought her in from the York boat. "You'll do as I tell you, won't you? And you won't be afraid?"

For an instant Lady Isobel looked at Lord Meton, shrinking and shivering in the stern of the canoe; and then she looked back to the other man's face, and blue fires seemed to leap into her eyes.

"With *you*—no, I'm not afraid," she said.

She leaned toward him, nearer and nearer, as the water rose about them, looking straight into his eyes. They both knew in that moment that it was the man and the woman who had triumphed, and that for them the lady and the gentleman were dead.

"I'm not afraid—with you," she said again.

Her lips trembled, and her golden hair swept over his breast, and Thomas Jefferson Brown bent down and kissed her once upon the mouth. Then he said, as if he were speaking to a little girl:

"Do not be afraid, and hold to the edge of the canoe when it fills. The wind will carry us to Harrison's Island."

He turned to Lord Meton, and repeated the words; and just then the birchbark began to settle under them. With one hand gripping the side, Thomas Jefferson Brown leaped over the sea. Lower and lower settled the canoe with almost a scream, Lord Meton cried above the wind:

"Good Lord, it won't hold us up!"

For a few moments Thomas Jefferson relieved the canoe of his weight, and the bark rose again, slowly. Then, with a gasp, he clutched at the side again, and into Lady Isobel's drenched face, half hid the wet veil of her shining hair.

“The canoe won’t hold us all up,” he said trying to smile. “But it will hold two—you two and the wind is taking it to the island, four miles to the island, and I may be make it.”

He knew that he never could make it; no man could swim so far in the chill waters of Hudson Bay; but he spoke as if his words were “I’m going to let go and try. Isobel, my love, will you kiss me?”

She threw one arm about his neck. Meton, clutching with frantic terror to the canoe saw nothing of what happened, nor did he hear the sobbing cry of Lady Isobel’s heart as she kissed Thomas Jefferson Brown, once, and then three times, before he dropped back into the sea again.

“Good-by, sweetheart!” he said.

In the eyes that looked up at her, in his eyes in the one last look of love that he said, “Good-by.” Lady Isobel saw the truth, and stretched out her arm to him.

“Stop! Come back! Take me with you!” she cried. “I want to go with you!”

And there, in the wildness of that sea, four miles from shore, Thomas Jefferson Brown seemed to heave himself up out of the water, as if the strength of a thousand swimmers had suddenly come to him. He let out a cry of triumph, of love, of joy; and he came back and gripped the canoe again, his gray eyes flashing, his face glowing with a strange flush.

“You want to go with me?” he said. “Come!”

He held up his arms, and with a cry that wasn’t fear Lady Isobel went into them, while Thomas Jefferson Brown called to Lord Meton:

“Stick to the canoe! It will take you to the island!”

IV

The shore was a low, dark streak, four miles away—an appalling distance away; but as she clung lightly to his shoulders, as Thomas Jefferson Brown told her to do, the horror and the fear of the big sea went out of Lady Isobel's brave little heart. She put her face down against his neck, pulled back his wet hair, and kissed him. God bless all such true hearts, wherever they be!

"We'll make it, Tom—we'll make it!" she told him a hundred times.

He felt the warm caresses of her lips, the thrilling love of her voice, and he knew that she was ready to die with him.

He swam in a strange way—a wonderfully strange way—did Thomas Jefferson Brown. He stood almost erect in the water, his head and shoulders clear; and now and then he stopped to rest, and it seemed no test for him at all to float with the weight of the woman he loved, his face turned up to her in those moments, her glorious blue eyes devouring him, her sweet lips kissing him—still kissing him.

He was doing a thing that she knew no other man in the world could do. She kept telling him so, while the land drew nearer and nearer, until at last she cried out in joy that she could see the little bushes along the shore.

"Another mile, Tom!" she said. "Only another mile, and then—"

"And then—" he said.

"And then—life!" she cried. "Life for you and me!"

He went on, seeming to grow stronger as the shore drew nearer. It was wonderful; but at last, when they came to the beach, he dropped down like a dead man. Lady Isobel caught his head to her dripping breast, and rocked him back and forth, sobbing a paean of love and pride, while far out she saw the canoe and Lord Meton drifting shoreward.

A few minutes later, Thomas Jefferson Brown went out into the sea again, until he was not much more than a speck, and brought in the canoe and Lord Meton, while Lady Isobel stood to her knees in the water, praising

her God that from riches and splendor she had come out into a wilderness to find such a man as this.

After that, at York Factory, there was nothing left for Thomas Jefferson Brown to do but to reveal himself, and when Lord Meton discovered that there ran as good blood through his rescuer's veins as through his own, he gripped hands with the man who had saved him, and gave his congratulations on the spot. But it made no difference to Isobel. If anything, she was a little disappointed.

Thomas Jefferson Brown arranged to go back with them on their yacht. The wedding would take place in London, a quiet affair. One day Isobel and her lover came along hand in hand, and Thomas Jefferson Brown said to me:

"Bobby, you're going to be best man."

"Not best man," Lady Isobel added, "but second best, Bobby. There's only one best man in the world!"

But I haven't been able to come to the point of this story yet—the remarkable part of it. Two weeks later, when we were up the river and our canoe struck a snag, I discovered that Thomas Jefferson Brown "couldn't swim a stroke!"

"Good Lord!" I said, but waited.

Back at the post, Thomas Jefferson Brown took me into his little room, and said:

"Bobby, you've found that I can't swim, and I'm going to trust you with a great secret. Love can accomplish miracles; and love did—out there. For when I let go of the canoe, Bobby, I knew that I was going straight down to my death. But a wonderful thing happened." He brought a little map from a drawer. "Look at this map, Bobby. See all those little marks off Harrison's Island—figures—twos and threes and fives, and nothing above sixes? That's the depth of water for five miles out from Harrison's Island, at low tide; and it was low tide when I jumped from the canoe. That's all, Bobby. *I waded ashore*. But what would be the good of saying anything about it when it brought me love like hers?"

Yes, what would be the use? For Thomas Jefferson Brown stepped out deliberately to go to his death, and found life. He's a hero and a man, is

Thomas Jefferson Brown, even if fate did step in to make heroism a little easy for him at the time!

*** END OF THE PROJECT GUTENBERG EBOOK THOMAS
JEFFERSON BROWN ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.